



NOTICE OF TEXT

[Authority G.S. 150B-21.2(c)]

OAH USE ONLY

VOLUME:

ISSUE:

CHECK APPROPRIATE BOX:

- ☒ Notice with a scheduled hearing
☐ Notice without a scheduled hearing
☐ Republication of text. Complete the following cite for the volume and issue of previous publication, as well as blocks 1 - 4 and 7 - 13. If a hearing is scheduled, complete block 5.
Previous publication of text was published in Volume: Issue:

FILED
2017 SEP 25 PM 3:14
OFFICE OF ADMIN HEARINGS

1. Rule-Making Agency:

Department of Natural and Cultural Resources

2. Link to agency website pursuant to G.S. 150B-19.1(c):

<https://www.ncdcr.gov/>

3. Proposed Action -- Check the appropriate box(es) and list rule citation(s) beside proposed action:

☐ ADOPTION:

☒ READOPTION with substantive changes:

07 NCAC 02H .0303

☐ READOPTION without substantive changes:

☒ AMENDMENT:

07 NCAC 02H .0103, .0106, .0302, .0305;
07 NCAC 02I .0202, .0302

☒ REPEAL:

07 NCAC 02G .0101, .0102;
07 NCAC 02H .0104, .0105, .304;
07 NCAC 02I .0101

4. Proposed effective date: February 1, 2018

5. Is a public hearing planned? ☒ Yes ☐ No

If yes: Public Hearing date: Thursday, November 2, 2017

Public Hearing time: 10:00 AM

Public Hearing Location: Department of Natural and Cultural Resources
109 E. Jones Street, Suite 310E (3rd Floor)
Raleigh, North Carolina 27601

6. If no public hearing is scheduled, provide instructions on how to demand a public hearing:

7. Explain Reason For Proposed Rule(s):

Rules 07 NCAC 02G .0101, .0102; 07 NCAC .02H .0104, .0105, .0304 and 07 NCAC .02I .0101 do not meet the definition of a rule as defined in G.S. 150B-2 and are hereby proposed for repeal.

Rule 07 NCAC 02H .0103 is amended to include clarifying language regarding access to library materials, the use of circulating and non-circulating library materials, and a borrowers responsibility for lost or damaged materials. Rule 07 NCAC 02H .0106 is amended with clarifying language regarding library services offered to State agencies. Rules 07 NCAC 02H .0302 and .0305 implement enactments of federal law related to the National Library Service. Rule 07 NCAC 02I .0202 is amended with clarifying language regarding State Aid Grants to public libraries. Rule 07 NCAC 02I .0302 is amended by adding language regarding the establishment of regional libraries.

Rule 07 NCAC 02H .0303 is proposed for re-adoption in response to the Periodic review and expiration of existing rules process (G.S. 150B-21.3A). Rule .0303 is rewritten with clarifying language regarding the application process for North Carolina's Library for the Blind and Physically Handicapped.

8. Procedure for Subjecting a Proposed Rule to Legislative Review: If an objection is not resolved prior to the adoption of the rule, a person may also submit written objections to the Rules Review Commission. If the Rules Review Commission receives written and signed objections in accordance with G.S. 150B-21.3(b2) from 10 or more persons clearly requesting review by the legislature and the Rules Review Commission approves the rule, the rule will become effective as provided in G.S. 150B-21.3(b1). The Commission will receive written objections until 5:00 p.m. on the day following the day the Commission approves the rule. The Commission will receive those objections by mail, delivery service, hand delivery, or facsimile transmission. If you have any further questions concerning the submission of objections to the Commission, please call a Commission staff attorney at 919-431-3000.

☐ Rule(s) is automatically subject to legislative review. Cite statutory reference:

9. The person to whom written comments may be submitted on the proposed rule(s):

Name: Shawn Middlebrooks

Address:

4601 Mail Service Center
Raleigh, North Carolina 27601

Phone (optional): 919-807-7275

Fax (optional):

E-Mail (optional): shawn.middlebrooks@ncdcr.gov

10. Comment Period Ends: December 15, 2017

11. Fiscal impact (check all that apply).

If this form contains rules that have different fiscal impacts, list the rule citations beside the appropriate impact.

- ☐ State funds affected
- ☐ Environmental permitting of DOT affected
Analysis submitted to Board of Transportation
- ☐ Local funds affected
- ☐ Substantial economic impact ($\geq$ \$1,000,000)
- ☐ Approved by OSBM
- ☒ No fiscal note required by G.S. 150B-21.4
- ☒ No fiscal note required by G.S. 150B-21.3A(d)(2)

12. Rule-making Coordinator:

Shawn Middlebrooks

Address:

4601 Mail Service Center
Raleigh, North Carolina 27601

Phone: 919-807-7275

E-Mail: shawn.middlebrooks@ncdcr.gov

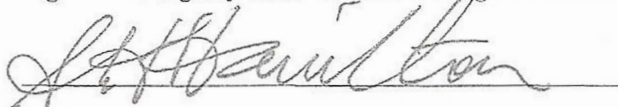
Agency contact, if any:

Phone:

E-mail:

13. The Agency formally proposed the text of this rule(s) on

Date: September 25, 2017

14. Signature of Agency Head* or Rule-making Coordinator:

*If this function has been delegated (reassigned) pursuant to G.S. 143B-10(a), submit a copy of the delegation with this form.

Typed Name: Susi H. Hamilton

Title: Secretary, Department of Natural and Cultural Resources